

see also, C.C.P. § 2023.030(a).) However, Defendant is correct that Plaintiffs did not comply with the procedural requirements necessary for the imposition of sanctions. C.C.P. § 2023.040 states that “[a] request for a sanction shall, in the notice of motion, identify every person, party, and attorney whom the sanction is sought, and specify the type of sanctions sought. The notice shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth fact supporting the amount of any monetary sanctions sought.” Monetary sanctions are not to punish but to make the moving party whole, which means they are based on attorney fees and costs incurred as a result of the misuse of discovery. (See *Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 790; *Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 75.) If the court is unable to ascertain from the record what fees and costs were incurred as a result of the discovery misuse, sanctions can be denied. (See *Cornerstone Realty Advisors, LLC, supra*, 56 Cal.App.5th at 790-791.)

Here, Plaintiffs do not identify the type of sanctions sought against Defendant in their Notice. They also only identify Defendant in the Notice, while also seeking sanctions against defense counsel in the memorandum of points and authorities. Finally, they do not provide a declaration with any facts showing the amount of attorney's fees incurred as a result of the misuse of discovery. Accordingly, the request for sanctions must be denied.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2507250	DEAN VS KAISER FOUNDATION HEALTH PLAN, INC.	MOTION FOR RECONSIDERATION OF [CCP 1048]

Tentative Ruling: Denied.

Plaintiff requests for the court to reconsider its prior ruling on Vexatious Litigant Status from March 19, 2026.

Responding party to provide notice pursuant to CCP 1019.5.

Motion for Reconsideration

A motion for reconsideration must be based on new or different facts, circumstances or law. (C.C.P. §1008(a).) The legislative intent was to restrict these motions to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) The burden is comparable to that of a party seeking a new trial on the ground of newly discovered evidence; that is, the information must be such that the moving party could not with reasonable diligence have discovered or produced it at trial. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-13.) A motion for reconsideration must be brought within 10 days of the service of the written notice of entry of the order (C.C.P. §1008(a)), while a renewal of a motion under C.C.P. §1008(b) has no explicit time limit.

“The ‘different state of facts’ language in the statute requires that the party seeking reconsideration provide both newly discovered evidence and an explanation for the failure to have produced such evidence earlier.” (*Robbins v. Los Angeles Unified School Dist.* (1992) 3 Cal.App.4th 313, 317.) “The moving party’s burden is the same as that of a party seeking new trial on the ground of ‘newly discovered evidence, which he could not, with reasonable diligence, have discovered and produced at the trial.” (*Baldwin v. Home Savings of America* (1997) 59 Cal.App.4th 1192, 1198.) And so the moving party must provide the trial court with a satisfactory explanation as to why he or she failed to produce the evidence at an earlier time. (*Mink v. Superior*

Court (1992) 2 Cal.App.4th 1338; *Lucas v. Santa Maria Public Airport Dist.* (1995) 39 Cal.App.4th 1017, 1028.)

Here, the court cannot reconsider the instant motion because Plaintiff has failed to post a bond as previously ordered to do so and thus the CCP section 391.6 stays remains in effect depriving this court of authority to rule on the merits of any pending motion. Moreover, there are no new or different facts, circumstances or law, which would allow this court to change its prior ruling.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2507250	DEAN VS KAISER FOUNDATION HEALTH PLAN, INC.	HEARING ON ANTI-SLAPP MOTION

Tentative Ruling: Matter is dismissed pursuant to CCP Section 391.4. Hearing taken off calendar as moot in light of dismissal.

On October 3, 2025, Plaintiffs Stephan Dean and Liza Dean, individually and d/b/a SureFile Filing Systems (collectively, “Plaintiffs”) filed the operative Complaint against Defendants Kaiser Foundation Health Plan, Inc. and Kaiser Foundation Hospitals (collectively, “Defendants”).

On January 15, 2026, Defendants filed a special motion to strike under CCP § 425.16. On January 21, 2026, Defendants filed a motion to declare Plaintiffs vexatious litigants under CCP § 391.

On March 19, 2026, the Court granted the vexatious litigant motion, declared each Plaintiff a vexatious litigant subject to a section 391.7 prefiling order, and ordered Plaintiffs to furnish \$50,000 in security to the Riverside Superior Court by April 1, 2026, or the case may be dismissed. (Minute Order dated March 19, 2026.) The Court expressly held that upon the filing of the vexatious litigant motion the entire litigation was stayed, and that the Court “need not address the merits of the anti-SLAPP motion unless and until ten (10) days after Plaintiffs post the security required by the Court’s order.” (*Id.*)

The Court thereafter continued the hearing on the anti-SLAPP motion to July 14, 2026, “to allow time to determine status of posting of security before court to decide merits on the instant motion.” (Court’s Minute Order dated April 1, 2026.)

On March 30, 2026, Plaintiffs filed a motion for reconsideration of the March 19, 2026 order, also set for hearing on July 14, 2026.

Anti SLAPP

As of July 13, 2026 the docket does not reflect that Plaintiffs have posted the \$50,000 security ordered on March 19, 2026. Defendants’ Opposition to the motion for reconsideration, filed May 15, 2026, affirmatively represents that “Plaintiffs have not posted the Court-ordered bond,” supported by the Declaration of Jack Burns, filed in support of that Opposition. (Burns Decl. ¶ 3.) The April 1, 2026 posting deadline has passed.

The pending motion for reconsideration does not toll the posting deadline. CCP § 391.4 provides that when security “is not furnished as ordered, the litigation shall be dismissed as to defendant for whose benefit it was ordered furnished.” (CCP § 391.4 [emphasis added].) The word “shall” is mandatory, and nothing in section 391.3, 391.4, or 391.6 tolls the posting deadline upon the filing of a motion for reconsideration.